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THE JAPAN BUSINESS ASSOCIATION IN VIETNAM

SOCIALIST REPUBLIC OF VIETNAM

Independence – Freedom - Happiness

No. 34/2017JBAV

Hanoi, Nov 28th, 2017

Re: Some concerns on the Draft Circular of brand name drug

Your Excellency Vice Minister Truong Quoc Cuong,

We are writing to Your Excellency to share our serious concerns about some changes relating to the Draft Circular of brand name drug (now is included on Registration Circular). We understand that this Draft Circular has now been on finalizing stage before approval.

The Japan Business Association in Vietnam (JBAV) consists of 680 Japanese-invested member companies (as of 1/11/2017) operating in Vietnam in various sectors, including the pharmaceutical industry. We are delighted to acknowledge that Japan has ranked among the countries with highest direct investments in Vietnam over the last 10 years. Looking to the future, we believe that our two nations' partnership will continue to be strengthened, creating more favorable conditions for enterprises from both our countries to cooperate even more successfully.

Regarding the Draft Registration Circular, we understand that it contains several sudden changes that restrict foreign Health Care Investment in Vietnam. These concerns are outlines as below:

1- The draft Registration Circular: article 14.1: Requirement for brand drug:

- Have enough clinical data for efficacy and safety as defined in article 7
- Is approved by at least one reference authority (EMA, UK, French, Germany, Sweden, Switzerland, US, Japan, Australia, Canada), excluding new drug manufactured in Vietnam.

We are highly concerned that these changes once issued, thus our opinion are:

1- It will cause to stop providing medicine to the patients who are taking the medicine continuously, and patients and HCPs in medical field will become confused.

2- Due to no provision of medicines from the originators who has clinical data, Medical Representative having scientific knowledge will be decreased and responding to adverse events appropriately in medical field will be difficult.

3- While the investment to Vietnamese pharmaceutical companies and direct investment to own factory in Vietnam have been active recently, this circular will decrease those

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motivation for further investment. Furthermore, it may become barrier to develop level of GMP into PIC/S-GMP in Vietnam that currently MOH is going to apply in near future.

Therefore, we would like to propose the below solutions:

1- DAV does not to apply the draft circular (article 14.1) to the drugs that already listed on Brand drug list (including brand drugs that have renewal/extension registration number).

2- DAV allows the current brand drugs to be continued on the brand drug list for 03 years so that we have time to transfer the manufacturing/packaging site to Japan or Vietnam.

On behalf of our member companies, we respectfully recommend that Your Excellency review our mentioned concerns in order to create a friendly and effective regulatory environment that will attract investment and promote economic growth and sustain to provide high quality medicine to Vietnamese citizen.

Thank you very much for your consideration.

Yours sincerely,

THE JAPAN BUSINESS ASSOCIATION

IN VIETNAM

Chairman

Hiroshi KARASHIMA

Recipients:
- As above;
- Mdm. Nguyen Thi Kim Tien, Minister of Health of the Socialist Republic of Vietnam;
- Embassy of Japan in Vietnam;
- The Japanese Business Association of Ho Chi Minh City;
- The Japan Business Association in Danang City;
- Save JBAV Office.